



CHAPTER cc.

An Act to enable the Barnet District Gas and Water Company to acquire additional lands construct additional works and raise further capital and for other purposes. A.D. 1904.
[15th August 1904.]

WHEREAS by the Barnet District Gas and Water Act 1872 (in this Act called "the Act of 1872") the Barnet District Gas and Water Company (in this Act called "the Company") were incorporated for the purpose of supplying gas and water within the limits thereby defined :

And whereas by the Barnet District Gas and Water Act 1883 and the Barnet District Gas and Water Act 1887 (respectively in this Act called "the Act of 1883" and "the Act of 1887") the limits of the Company for the supply of water were extended and the Company were authorised to make and maintain additional waterworks and to increase their share and loan capitals respectively :

And whereas the following is a statement of the share capital of the Company authorised by the said Acts and of the amounts of such capital issued and paid up :—

Act authorising Capital.	Amount of Capital authorised.	Description of Capital and Amount issued.	Amount of Capital paid up.
The Act of 1872	£ 72,720	"A" capital the whole of which has been issued as or converted into stock.	£ 72,720
Same Act -	12,280	"B" capital the whole of which has been issued as or converted into stock.	12,280
Same Act -	50,000	"C" capital the whole of which has been issued as or converted into stock.	50,000
The Act of 1883	58,200	"D" gas capital whereof £25,000 has been issued as or converted into stock.	25,000
Same Act -	116,800	"D" water capital the whole of which has been issued as or converted into stock.	116,800
The Act of 1887	40,000	"D" water capital, whereof £24,580 has been issued as or converted into stock.	24,580

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And whereas the following is a statement of the loan capital of the Company authorised by the aforesaid Acts and now raised by mortgage of the Company's undertaking :—

Act empowering the Company to borrow.	Capital in respect of which Borrowing Powers are exerciseable.	Amount authorised to be borrowed.	Amount raised by Mortgage.
	£	£	£
The Act of 1872 - - -	66,500	16,500	16,500
Same Act - - - - -	18,500	4,600	4,600
Same Act - - - - -	50,000	12,500	12,500
The Act of 1883 - - -	175,000	43,750	31,250
The Act of 1887 - - -	40,000	10,000	Nil.

And whereas the demand for water within the existing limits of the Company for the supply of water has increased and is still increasing and for the better and more effectually enabling the Company to meet such demand and to carry out the objects and purposes of their water undertaking it is expedient that power should be conferred upon the Company to acquire additional land to construct additional waterworks and to raise further capital :

And whereas it is expedient that such other provisions as are in this Act contained should be made with reference to the Company and their water undertaking :

And whereas plans and sections showing the lines and levels of the reservoir authorised by this Act (the plans also showing the lands to be acquired under this Act) and also a book of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Hertford and are hereinafter referred to as " the deposited plans sections and book of reference " :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the *Barnet District Gas and Water Act 1904.*

Citation of Acts.

2. The Act of 1872 the Act of 1883 the Act of 1887 (hereinafter referred to as " the Acts of 1872 1883 and 1887 ") and this

Act may be cited together as the *Barnet District Gas and Water Acts* 1872 to 1904. A.D. 1904.

3. The following Acts and parts of Acts (viz.) :—

Incorporation of
general Acts.

The Lands Clauses Acts ;

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof ;

The Waterworks Clauses Acts 1847 and 1863 except the words in section 44 of the former of those Acts “ with the “ consent in writing of the owner or reputed owner of any “ such house or of the agent of such owner ” ;

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of the right of voting by the shareholders ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested ;

And Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III.

(relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts ;

are so far as applicable and except where expressly varied by this Act incorporated with and form part of this Act.

4. In this Act—

The expressions “ the waterworks ” and “ the water undertaking ” mean respectively the waterworks and the works

Interpretation.

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connected therewith and the undertaking so far as the same relates to waterworks by the Acts of 1872 1883 and 1887 and this Act authorised ;

The expression "the limits of supply" means the limits within which the Company are by the Acts of 1872 1883 and 1887 authorised to supply water ;

The expression "the Company's Acts" means the Acts of 1872 1883 and 1887 and this Act ;

The expression "premises" has the meaning assigned to that expression by the Act of 1883 :

And in the Railways Clauses Consolidation Act 1845 for the purposes of this Act—

The expressions "the railway" "the work" and "the centre of the railway" respectively mean and have reference to the reservoir by this Act authorised.

Power to
take lands.

5. Subject to the provisions of this Act the Company may enter upon take and use such of the lands in the parish of Shenley included within the limits of deviation of the reservoir by this Act authorised shown on the deposited plans and described in the deposited book of reference as they require.

Power to
construct
reservoir.

6. Subject to the provisions of this Act the Company may make and maintain the reservoir hereinafter described in the lines and according to the levels shown on the deposited plans and sections The reservoir hereinbefore referred to and by this Act authorised will be situate in the county of Hertford and is—

A reservoir in the parish of Shenley in the rural district of Barnet situate in the south-eastern part of the property Nod. 623 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1898) of the said parish.

Power to
make subsi-
diary works.

7. Subject to the provisions of this Act the Company in addition to the reservoir by the section of this Act whereof the marginal note is "Power to construct reservoir" authorised may from time to time make and maintain all necessary or proper pumps roads ways engines machinery tanks sluices outlets overflows basins gauges filter-beds discharge pipes channels tunnels culverts cuts catchwaters drains stand-pipes valves junctions approaches buildings houses chimneys shafts ventilating shafts telegraphs telephones and other means of electric communication and conveniences connected with or ancillary to the said reservoir or necessary for inspecting maintaining repairing cleansing managing working and

[4 EDW. 7.] *Barnet District Gas and Water Act, 1904.* [Ch. cc.]

using the same Provided that any telegraphs telephones or other means of electric communication constructed and maintained under the authority of this Act shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Acts 1863 to 1899. A.D. 1904.

8. The Company may undertake to pay to the Postmaster-General any loss he may sustain by reason of the establishment or maintenance at their request of any post or telegraph office or of any additional facilities (postal or other) in connection with the works authorised by this Act and any expenses incurred by the Company under such undertaking may be defrayed out of any revenue or funds of the Company. Agreements with Postmaster-General.

9. Subject to the provisions of this Act the Company may in the construction of the reservoir by this Act authorised and shown on the deposited plans deviate from the lines or position thereof as shown on those plans to any extent within the limits of deviation defined on those plans and the Company may also deviate vertically from the levels of the reservoir by this Act authorised as delineated on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards Provided always that the Company shall not in the exercise of the power of lateral deviation hereby given make any embankment or wall of the said reservoir of a greater height above the general surface of the ground than that shown on the deposited sections and five feet in addition. Power to deviate.

10. The Company may by agreement purchase take on lease or acquire and hold for the purposes of the water undertaking (in addition to any lands by the Acts of 1872 1883 and 1887 or any of them authorised to be purchased and the land in the parish of Shenley within the limits of deviation delineated on the deposited plans) any lands within the limits of supply not exceeding in the whole fifteen acres and may on all or any of such lands execute for the purposes of or in connection with the waterworks any of the works and exercise any of the powers mentioned in or conferred by section 12 of the Waterworks Clauses Act 1847 and the Company may also purchase by agreement any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) in under or over such additional lands which they may think requisite Provided that so long as any lands acquired by or leased to the Company under this section are held by them the Company shall not cause or permit a nuisance on any such lands and shall not on any such Power to acquire additional lands by agreement.

A.D. 1904. — lands erect or authorise or permit the erection of any buildings other than buildings connected with or necessary for the water undertaking.

For protection of county of Middlesex.

11. For the benefit and protection of the county council of the administrative county of Middlesex (in this section called or referred to as "the county council") the following provisions shall notwithstanding anything in this Act contained unless otherwise agreed to in writing by the county council and the Company have effect (that is to say) :—

- (1) It shall not be lawful for the Company to supply water in bulk or otherwise from their present sources of supply for use outside of their present limits of supply :
- (2) The Company shall not by agreement purchase or acquire or take on lease for the purposes of their works any additional lands in the county of Middlesex exceeding five acres in the whole :
- (3) The Company shall not upon any part of such additional lands sink any well in the said county but may thereon construct a reservoir or other works necessary or convenient for the supply of water in Middlesex :
- (4) If the Company in the execution of any works in or affecting any main road in the county of Middlesex shall cause any damage injury or disturbance to such road and shall neglect or refuse to make good all such damage injury or disturbance in accordance with the provisions of the Waterworks Clauses Act 1847 then it shall be lawful for the county council after reasonable notice to the Company of the alleged neglect or refusal and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Company shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works.

For protection of Hertfordshire County Council.

12. For the protection of the county council of the administrative county of Hertford (in this section called "the county council") the following provisions shall notwithstanding and in addition to any other provisions in this Act contained unless otherwise agreed in writing between the county council and the Company obtain and have effect (that is to say) :—

- (1) The Company shall not under the powers of this Act by agreement purchase take or lease or acquire and hold

for the purposes of their undertaking any additional lands in the county of Hertford exceeding fifteen acres in extent or any lands outside the limits of supply :

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- (2) It shall not be lawful for the Company to supply water in bulk or otherwise beyond or for use beyond the limits of supply :
- (3) If the Company in the execution of any works in or affecting any main road in the county of Hertford shall cause any damage injury or disturbance to such road and shall neglect or refuse to make good all such damage injury or disturbance in accordance with the provisions of the Waterworks Clauses Act 1847 then it shall be lawful for the county council after reasonable notice to the Company of the alleged neglect or refusal and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Company shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works :
- (4) If any difference at any time arises between the county council and the Company touching this section or anything to be done or not to be done thereunder such difference shall be settled by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party.

13. Persons empowered by the Lands Clauses Acts or otherwise enabled to sell and convey or release lands may subject to the provisions of those Acts and of this Act grant to the Company in fee either absolutely or in consideration of any yearly or other rent any easement interest right privilege or power (not being an easement of water in which persons other than the grantors have an interest) required for the purposes of this Act in over affecting or belonging to any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements interests rights privileges and powers as aforesaid respectively.

Power to grant easements &c.

14. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

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Period for
completion of
reservoir.

15. If the reservoir authorised by this Act and shown on the deposited plans is not completed within three years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for executing the same or in relation thereto shall cease except as to so much thereof as is then completed but nothing herein contained shall restrict the Company from at any time renewing extending enlarging altering reconstructing or removing any of their tanks gauges filter beds drains sluices adits drifts tunnels catchpits conduits aqueducts valves washouts by-washes engines pumps machinery apparatus mains pipes or other works or plant and increasing or improving their supply of water or from exercising any of the powers with respect to the construction of works conferred by the Acts incorporated with this Act from time to time as occasion may require.

Temporary
discharge of
water into
streams.

16.—(1) For the purpose of constructing repairing cleansing emptying or examining any wells aqueducts or other works by the Company's Acts or any of them authorised the Company may cause the water in any such wells or works to be temporarily discharged into any available stream or watercourse.

(2) In the exercise of the power conferred by this section the Company shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

(3) In the exercise of the power conferred by this section the Company shall as regards any such stream or watercourse which is situate within the county of Middlesex comply with such reasonable regulations as the county council of Middlesex may from time to time make in respect thereof and if any difference shall arise between the county council and the Company as to the reasonableness of any such regulation the same shall be determined by an arbitrator to be appointed on the application of either party by the Local Government Board.

Power to
hold lands
for protec-
tion of
waterworks.

17. The Company may hold any lands for the time being vested in them which it may in their opinion be desirable to hold for the purpose of protecting their waterworks or water supply against pollution nuisance encroachment or injury and so long as it shall in the opinion of the Company be desirable to continue to hold such lands the same shall not be deemed to be superfluous lands within the meaning of the Lands Clauses Acts.

18. The Company may notwithstanding the provisions of the Lands Clauses Acts with respect to the sale of superfluous lands sell lease exchange or otherwise dispose of any lands for the time being belonging to or vested in them for such consideration and on such terms and conditions as they think fit and may execute and do any deed act or thing proper for effectuating any sale lease exchange or disposition and on any exchange may pay or receive any money by way of equality of exchange and on any such sale lease exchange or disposition may reserve to themselves all or any water rights or other easements belonging or in relation thereto and may make the sale lease exchange or disposition subject to such reservations accordingly and may also make any such sale lease exchange or disposition subject to such other reservations special conditions restrictions and provisions with respect to the user of such lands or with regard to the use of water or the carrying on of noxious trades or the discharge or deposit of sewage or other impure matter and otherwise as the Company may think fit.

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Power to sell
&c. spare
lands.

19. The Company shall in so much of any streets or roads in the administrative county of Middlesex outside the limits of supply as constitutes the boundary of any parish within those limits as the Company shall require to break up for the purpose of laying pipes for supplying water within the same limits have and be entitled to exercise all the rights powers and authorities conferred by the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and the said provisions shall apply to so much of the said streets or roads as aforesaid as if the same were within the limits of the Company's Acts.

Power to lay
mains in
streets out-
side for pur-
poses of sup-
ply within
water limits.

20. Section 54 of the Waterworks Clauses Act 1847 shall apply and be in force within the whole of the limits of supply notwithstanding that water to be supplied by the Company be constantly laid on under pressure within such limits or any part thereof.

Cisterns to
be supplied.

21. The Company may enter into and carry into effect contracts and arrangements with any body or company authorised to supply water within any area adjoining the limits of supply or any person or persons entitled to do so with respect to the supply to the Company by such body company person or persons of water in bulk Provided that nothing in this section or in any such contract or arrangement shall authorise or require such body company person or persons to afford such supply if and so long as the affording such supply would interfere with the supply of water for domestic

Agreements
with other
bodies for
supply of
water.

A.D. 1904. — purposes within the area in which such body company person or persons is or are under statutory obligation to afford a supply for such purposes.

Owners in certain cases liable for water rates.

22. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him at the date of or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

As to pressure.

23. From and after the expiration of three years from the passing of this Act the Company may provide or upon the application of a local authority be required to provide upon the conditions specified in and in conformity with the provisions of the Act of 1883 as varied by this section a constant supply of water within the portions of the parishes of Friern Barnet East Barnet Barnet Vale South Mimms Urban Hadley and Monken Hadley and of the Barnet Urban District which can be supplied from the reservoir by this Act authorised and are more than three hundred feet above Ordnance datum level at the respective pressures following (that is to say) :—

(A) In the case of the said parishes such a pressure as can be afforded by gravitation from the said reservoir ; and

(B) In the case of the said urban district such a pressure as will make the water reach a level not higher than four hundred and thirty feet above Ordnance datum level.

As to constant supply in Finchley.

24.—(1) From and after the first day of January one thousand nine hundred and five sections 21 to 26 and 28 of the Act of 1883 shall (except to the extent in this section after mentioned) cease to apply within the urban district of Finchley (in this section called “the district”).

(2) Notwithstanding section 55 of the Act of 1872 from and after the said first day of January the Company shall provide at such a pressure as may be afforded by gravitation from their existing reservoirs at New Barnet a constant supply of water within the areas and at the dates following (that is to say) :—

(A) As regards that portion of the district which is defined by the order of the Local Government Board dated the twenty-seventh day of June one thousand eight hundred

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and ninety-nine on and after the first day of January A.D. 1904.
one thousand nine hundred and five; and

(B) As regards the rest of the district within such portions thereof and at such date or dates as may be agreed to by the Company and the Finchley Urban District Council :

Provided that the Company shall within three years from the date of the passing of this Act provide such constant supply throughout so much of the district as can be supplied by gravitation from their existing reservoirs at New Barnet.

(3) From and after the expiration of the period of three years from the passing of this Act section 55 of the Act of 1872 shall cease to apply within the district. Provided always that the water to be supplied need not be constantly laid on at a pressure greater than that which will be afforded by gravitation from the reservoir by this Act authorised or would be so afforded if such reservoir were then constructed nor shall the Company be required to afford a supply at a pressure greater than will make the water reach a level of sixty feet above the level of the road nearest the point at which such supply shall be given.

(4) The Company shall not be compelled at any time to give a constant supply to any premises in the district if it can be shown by the Company that more than one fifth of the premises in the portion of the district to which constant supply is to be afforded as aforesaid are not provided with the fittings prescribed by the regulations hereinafter in this section mentioned and if default is made in respect of the provision of such fittings the Finchley Urban District Council may by notice in writing require the owner or occupier of any premises in respect of which such default has been made within a time to be specified in such notice to provide such fittings or to cause the fittings in such premises to be repaired so as to be in accordance with the said regulations and if any person fail to comply with the terms of such notice the said district council may themselves provide for such premises the prescribed fittings or repair the fittings within the same as the case may be and the provisions of section 24 of the Act of 1883 as to recovery of expenses shall apply to the recovery by the said district council of any expenses incurred by them under this section.

(5) Until new regulations shall have been made and confirmed in accordance with the Act of 1883 the regulations made on the eighth day of May one thousand nine hundred and three by the Company and confirmed by the Local Government Board on the

A.D. 1904. fourteenth day of July one thousand nine hundred and three shall be in force within the portions of the district in which the Company are in accordance with this section for the time being under obligation to afford a constant supply.

For protection of
Finchley
Urban District
Council.

25. For the protection of the district council of the urban district of Finchley (in this section referred to as "the district") the following provisions shall as from the twenty-fifth day of December one thousand nine hundred and four have effect within the district (that is to say):—

- (1) Notwithstanding anything contained in section 56 (Rate at which water is to be supplied for domestic purposes) of the Act of 1872 the Company shall in no case be entitled to demand for the supply of water for domestic purposes to any house or part of a house included in any division of the scale fixed by section 56 of the Act of 1872 a greater sum of money than they would be entitled to demand if such house or part of a house were of just sufficient rack rent or value to bring it within the next division of the said scale relating to premises of a higher rack rent or value whereon a lower rate per centum per annum is chargeable :
- (2) Notwithstanding anything contained in section 57 of the Act of 1872 (Rates for water closets and baths) the Company shall not demand and receive for the first private bath in any house the rack rental or annual value of which shall not amount to forty pounds any yearly sum exceeding ten shillings :
- (3) The Company shall unless prevented by frost unusual drought or other unavoidable cause or accident or during necessary repairs supply the Finchley Urban District Council with water by meter for the purposes defined by section 37 of the Waterworks Clauses Act 1847 and for the purposes of the electricity works of the said council and any public elementary or secondary school provided by such council at rates not exceeding the following (that is to say):—
 - (i) For the first million gallons taken in any quarter of the year one shilling per thousand gallons ;
 - (ii) For any quantity exceeding one million gallons and not exceeding two million gallons taken in any quarter of the year elevenpence per thousand gallons ;

(iii) For any quantity exceeding two million gallons and not exceeding three million gallons taken in any quarter of the year tenpence per thousand gallons ;

(iv) For any quantity exceeding three million gallons taken in any quarter of the year ninepence per thousand gallons :

Provided always that the Company shall not be bound to supply water for the purposes in this subsection mentioned if and so long as such supply would in any way interfere with or unduly diminish the supply of water for domestic purposes within all parts of the limits of supply :

(4) The rates to be charged by the Company for a supply of water by measure for other than domestic purposes by means of communication pipes and other necessary and proper apparatus to be provided laid and maintained at the cost of the person requiring such supply shall not exceed the following rates (namely) :—

(i) For the first two hundred and fifty thousand gallons taken in any quarter of the year one shilling and sixpence per thousand gallons with a minimum payment of ten shillings per quarter ;

(ii) For the quantity exceeding two hundred and fifty thousand gallons and not exceeding three hundred and seventy-five thousand gallons taken in any quarter of the year one shilling and fourpence half-penny per thousand gallons ;

(iii) For the quantity exceeding three hundred and seventy-five thousand gallons and not exceeding five hundred thousand gallons taken in any quarter of the year one shilling and threepence per thousand gallons ;

(iv) For the quantity exceeding five hundred thousand gallons and not exceeding six hundred and twenty-five thousand gallons taken in any quarter of the year one shilling and one penny halfpenny per thousand gallons ;

(v) For the quantity exceeding six hundred and twenty-five thousand gallons taken in any quarter of the year one shilling per thousand gallons :

(5) The Company shall cause a map on a scale of not less than twenty-five inches to a mile to be made showing

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the position of all the existing water mains and pipes (other than service pipes) of the Company laid in the streets (including streets not dedicated to public use) within the district and also as nearly as may be the position of all valves in the said mains and pipes and shall keep the same at the office of the Company at New Barnet and the Company shall at least once in every year thereafter cause such map to be corrected and such additions and alterations to be made therein as may be necessary to show correctly as nearly as may be the lines position and sizes of the various water mains or pipes and valves laid in such streets and the Company shall at all reasonable times give to the Finchley Urban District Council access to and permit them to inspect and take copies of or extracts from the said map so far as the same relates to the district.

Local authorities may contract by way of guarantee or otherwise for supply of water.

26.—(1) Any corporation or urban or rural district council or other local authority the district under whose jurisdiction is in whole or in part within the limits of supply may and is hereby empowered to give and enter into any guarantee or contract for securing payment to the Company of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between such corporation council or authority and the Company for the purpose of or with respect to the providing or laying down by the Company of any main pipe or works for the supply of water by means of such main pipe or works within such district.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose of the Public Health Act 1875 and any such corporation council or authority may raise any money which may become payable to the Company under this section accordingly.

Water supply to large institutions.

27. The Company shall not be bound to supply water otherwise than by meter to any workhouse hospital barrack or large building occupied by persons living in community for sanitary or religious purposes except upon such terms as may be from time to time agreed between the Company and the guardians trustees managers or other persons having the charge of such workhouse hospital barrack or building or as in case of difference may be from time to time determined by an arbitrator to be appointed (on the application of either of the parties) by the judge

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of the county court within whose district such workhouse hospital
barrack or building is situate. A.D. 1904.

28. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Company or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Company shall (without prejudice to any other right or remedy for the protection of the Company) be liable to a fine not exceeding five pounds and the Company may in addition thereto recover the amount of any damages sustained by them And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Company or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Company the Company may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for ensuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Company by the person so offending and may be recovered by them as water rates are recoverable The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Company when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings. Fraudulently injuring meters &c.

29. The Company may apply to the purposes of this Act to which capital is properly applicable any moneys which they may have already raised or be authorised to raise for the purposes of the water undertaking and may from time to time raise in addition to the capital which they are authorised to raise by the Acts of 1872 1883 and 1887 any further capital (to form part of and be distinguished as "D" water capital) not exceeding in the whole one hundred and fifty thousand pounds by the creation and issue at Power to raise additional capital.

A.D. 1904. — their option of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share created under the authority of this Act of less nominal value than ten pounds nor shall any such share or stock vest in the person or corporation accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof.

Appropriation of additional capital.

30. The additional capital by this Act authorised to be raised shall form part of the water capital of the Company and shall be appropriated to and used for the water undertaking only.

Incidents of new shares or stock.

31. Subject to the provisions of this Act the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing "D" water capital of the Company and the new shares or stock were shares or stock in that capital.

Dividends on new shares or stock.

32. Subject to the provisions of this Act every person who becomes entitled to any such new shares or stock shall be entitled to a dividend proportioned to the amount from time to time called up and paid on such new shares or to the whole amount of such shares or stock as the case may be.

Profits of Company limited.

33. The Company shall not in any one year make out of their profits any larger dividend on the additional share capital to be raised under the powers of this Act than seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said sum of seven pounds per centum per annum or than six pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as preference capital.

Dividends on different classes of shares or stock to be paid proportionately.

34. In case in any half year the net revenues of the Company applicable to dividend shall be insufficient to pay the full amount of dividend on each class of ordinary shares or stock in the capital of the Company a proportionate reduction shall be made in the dividend of each class.

Restriction as to votes in respect of pre-

35. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect

of any new shares or stock to which a preferential dividend shall be assigned.

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ferential shares
or stock.

36. Notwithstanding anything in this Act contained the Company shall when any shares or stock created under the powers of this Act are to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or ordinary stock of the Company are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price put upon such shares or stock shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner And provided that no priority of bid or tender shall be allowed to any holder of shares or stock in the Company except that if any bid or offer by tender of any holder or holders of shares or stock in the Company be the same in amount as any bid or offer made by any other person the bid or offer of such holder or holders of shares or stock shall be accepted in preference.

New shares
or stock to
be offered by
auction or
tender.

37. It shall be one of the conditions of any sale of shares or stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Purchase-
money of
capital sold to
be paid within
three months.

38. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the clerk of the district council of any district wholly or partly included in the limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply.

Notice to be
given as to
sale of shares
or stock.

39. When any shares or stock created under the powers of this Act have been offered for sale by auction or tender and not

Shares or
stock not sold
by auction or

A.D. 1904.
by tender to
be offered to
share or stock
holders.

sold the same shall be offered at the reserve price put upon the same respectively for the purpose of sale by auction or tender to the holders of ordinary shares or ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 Provided always that any shares or stock so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares and stock created under the powers of this Act except that the reserve price put upon such shares or stock may upon such second auction or tender (if the directors of the Company think fit) be less than the nominal amount thereof and any shares or stock not then sold by auction or tender shall be again offered to the holders of ordinary shares or ordinary stock at the last-mentioned reserve price and so from time to time.

Application
of premium
arising on
issue of
shares or
stock.

40. Any sum of money which shall arise from the issue of any such shares or stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend.

Power to
borrow.

41. The Company in addition to the sums which they are authorised to borrow by the Acts of 1872 1883 and 1887 or any of them may from time to time subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-fourth part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by shares or stock but no part of such sum or sums last aforesaid shall be borrowed until the whole of the shares or stock at the time issued under the provisions of this Act shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Appointment
of receiver.

42. The provisions of the Act of 1887 authorising the appointment of a receiver are hereby repealed without prejudice

to any appointment heretofore made or to any proceedings pending at the passing of this Act And in lieu thereof the mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver And in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole. A D. 1904.

43. The Company may create and issue debenture stock subject to the provisions of section 39 of the Act of 1887. Debenture stock.

Notice of the effect of that enactment shall be endorsed on all mortgages granted and certificates of debenture stock issued by the Company after the passing of this Act.

44. All money to be raised by the Company under the provisions of this Act on mortgage or by the issue of debenture stock shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company in pursuance of any Act relating to the Company which is entitled to rank in priority to or pari passu with the interest on their mortgages or debenture stock. Priority of mortgages and debenture stock over other debts.

45. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied for the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable. Application of moneys.

46. If any money is payable by the Company to a shareholder stockholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company. Receipt in case of persons not sui juris.

47. The costs charges and expenses preliminary to and of and incidental to the preparing for and applying for and obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company. Expenses of Act.

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